

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFFS' MOTION TO DEEM REQUESTS ADMITTED

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lavina Richie ("Defendant.") Now before the Court is Plaintiff's Motion to Deem Requests for Admissions Admitted.

Defendant has not filed an opposition.

On February 23, 2026, Plaintiffs served, by mail, "Plaintiff Kelley Taylor's Request for Admissions to Defendant Lavina Ritchie, Set One 1" ("RFA") on Defendant. (Declaration of Justin P. Swierczek ("Swierczek Decl.") ¶ 3, Ex. 1.) Defendant never responded nor communicated with Plaintiffs' counsel about the RFAs. (*Id.* ¶¶ 4, 5.)

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under this section is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiffs served Defendant with RFAs on February 23, 2026. Defendant has not responded to the RFAs and has not filed any opposition to this motion.

Accordingly, the Court **GRANTS** Plaintiffs' motion to deem the facts as admitted as truth. Requests 1 through 28 attached as Exhibit "1" to the Declaration of Justin Swierczek are all deemed admitted for all further case purposes.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiffs to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

FARIDI v TDS TRUSTEE SERVICES

25CV48053

PLAINTIFF’S MOTION FOR DETERMINATION OF STANDING AND CORRECTION OF CLERICAL AND ADMINISTRATIVE ERROR

Plaintiff Tariq Jamil Faridi (“Plaintiff”) filed his Complaint arising out of a real property dispute with Defendant Steve Carlson (“Carlson”).

Now before the Court is Plaintiff’s motion for a determination of Plaintiff’s standing and a motion to correct a clerical error pursuant to Code Civil Procedure section 473(b).

Plaintiff filed his First Amended Complaint on July 3, 2025, against Carlson and “TDS Trustee Services” (“TDS.”)¹ In the FAC, Plaintiff alleged that on or about March 7, 2025, TDS recorded a Trustee’s Deed Upon Sale naming Carlson as grantee and thereafter Carlson evicted Plaintiff from the premises. On July 11, 2025, Plaintiff filed a notice of dismissal pursuant to which he dismissed Carlson as a defendant on all causes of action, with prejudice. Carlson is no longer a party to this action.

Plaintiff’s current motions are confusing and meritless. Plaintiff complains that the service of the FAC on Carlson should show service on January 16, 2026, instead of the date shown on the docket (Jan 23, 2026.) The docket, however, clearly shows that the Court filed the proof of service on January 23 but shows that service occurred on January 16, 2026. It is unclear what error Plaintiff is asserting nor how the alleged error has impacted this case.

Plaintiff also asks the Court to determine that he has standing to bring the matter. However, what Plaintiff is ultimately asking the Court to determine is that he has provided sufficient evidence to show that he is entitled to prevail on his claims against Carlson and TDS. First, Plaintiff dismissed Carlson, with prejudice, on his own accord. Plaintiff does not allege that he made a mistake or error in doing so nor does he cite to any legal authority that would allow him to continue to pursue claims against Carlson after dismissing him with prejudice. (See *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 91 [“dismissal with prejudice is considered a judgment on the merits preventing subsequent litigation between the parties on the dismissed claim.”]) Second, the relief sought by Plaintiff in his motion cannot be determined by a finding of standing alone. Thus, the motion is inappropriate.

¹ TDS asserts that its true name is TD Specialists.